

		all parties that have appeared in the case. (Cal. Rules of Court, Rule 3.1362(e).) Moving Attorney to give notice.
106	Palos vs. La Habra Unified School District, 2025-01511238	Motion to Strike Portions of Complaint – DENIED Defendant, La Habra City School District (“Defendant”), moves for an order striking all references to attorney’s fees and costs at paragraph 78, page 15, lines 1 through 3 of the Second Amended Complaint of Plaintiff, Ian Palos, a minor, by and through his Guardian ad Litem, Salem Palos (“Plaintiff”). The motion to strike is DENIED. Under Code of Civil Procedure section 436, the court may, upon a motion or at any time in its discretion, and upon terms it deems proper, strike out “...any irrelevant, false, or improper matter inserted in any pleading” or “all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc. § 436(a)-(b); See Quiroz v. Seventh Ave. Ctr. (2006) 140 Cal.App.4th 1256, 1281.) Irrelevant matters include allegations not essential to a claim or defense, allegations not pertinent to nor supported by a sufficient claim or defense, or requesting relief not supported by the allegations of the complaint or cross-complaint. (Code Civ. Proc. § 431.10(b).) Defendant claims the allegations of the second amended complaint seeking attorney fees and costs are not supported by the claims for relief, and are therefore irrelevant. Paragraph 78 of the ninth cause of action for violation of Government Code section 11135 states: “As a proximate result of the acts and omissions of Defendants, and each of them, as described herein, Plaintiff is entitled to Plaintiff’s reasonable attorney’s fees, Plaintiff’s costs of suit incurred herein, and such other and further relief as the Court deems just and proper.”

“[E]ach party to a lawsuit is responsible for his or her own attorney’s fees in the absence of an agreement between the parties for fees or a statute specifically authorizing fees. [Citations.]” (Pederson v. Kennedy (1982) 128 Cal.App.3d 976, 979.) Under Code of Civil Procedure section 1032, attorney’s fees are recoverable as costs when authorized by contract, statute or law. (Code Civ. Proc. § 1033.5(a)(10)(A)-(C).)

Plaintiff does not dispute that Government Code section 11135 does not reference or authorize attorney’s fees, and cites to no authority supporting that attorney’s fees are authorized by Government Code section 11135. Instead, Plaintiff appears to rely upon Code of Civil Procedure section 1021.5. The Second Amended Complaint makes no claim for attorney’s fees under Code of Civil Procedure section 1021.5, but there is no requirement that a claim for attorney’s fees under Section 1021.5 must be pled in the complaint.

“ ‘There is no requirement that the intent to seek attorney fees under section 1021.5 must be pleaded in the underlying action. [Citation.] Such fees are not part of the underlying cause of action, but are incidents to the cause and are properly awarded after entry of a . . . judgment[.]’ [Citation.]” (Snatchko v. Westfield LLC (2010) 187 Cal.App.4th 469, 497 [finding that trial court erred in striking plaintiff’s prayer for attorney fees under Code of Civil Procedure section 1021.5 based on a failure to adequately plead their basis, and that plaintiff’s failure to reallege his request for fees in his first amended complaint did not waive or forfeit his ability to seek them at the conclusion of his case since there was no requirement that they be pled at all].)

Additionally, the “preliminary consideration under section 1021.5 is the plaintiff’s success.” (Vargas v. City of Salinas (2011) 200 Cal.App.4th 1331, 1339.) Since the plaintiff’s success cannot be assessed until after judgment, a motion to strike attorney’s fees under Code of Civil Procedure section 1021.5 appears premature.

Defendant to file an Answer within 20 days.

107	Sanderson J. Ray Apartments Property, LLC vs. SLR California Constructions, LLC, 2024-01418621	Motion to Appear Pro Hac Vice – GRANTED Moving attorney Christopher C. Broughton’s application to appear pro hac vice for Plaintiff Sanderson J. Ray Apartments Property, LLC is GRANTED. The application and supporting documents demonstrate that all requirements of California Rules of Court, Rule 9.40 are satisfied. Plaintiff to give notice.
108	Security National Insurance Company vs. O. C. Services Inc., 2020-01164470	Motions to be Relieved as Counsel – GRANTED Aaron C. Watts (“Moving Attorney”) moves to be relieved as counsel of record for (1) Defendant O.C. Services Inc. and (2) Defendant S & C Inc. The motions are unopposed. Moving Attorney has stated a basis for permissive withdrawal under Rules of Professional Conduct, Rule 1.16. The motion satisfies the notice, declaration, and proposed order requirements of Cal. Rules of Court, Rule 3.1362. The motions are GRANTED. The orders relieving counsel will be effective upon counsel filing proof of service of a copy of the signed orders on the client and on all parties that have appeared in the case. (Cal. Rules of Court, Rule 3.1362(e).) The Court will interlineate Par. 7 of the Order with the next scheduled hearing date in this action: September 14, 2026 at 9:00 a.m. in Dept N14, Motion for Entry of Judgment and OSC re: Dismissal Moving Attorney to give notice.
109	Valdivia vs. Diversified Maintenance Systems, LLC, 2025-01528658	Demurrer to Amended Complaint – OVERRULED IN PART AND SUSTAINED IN PART Defendant B. BRAUN MEDICAL INC. demurs to all causes of action in Plaintiff’s first amended complaint. The demurrer is overruled as to the 1st through 4th causes of action. There are sufficient facts pled to put